

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lydia Obasi	Team: Team # 4	CCRB Case #: 200409686	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 09/29/2004 10:45 PM	Location of Incident: 114 Manhattan Ave inside Morningside Park, Manhattan	18 Mo. SOL 3/29/2006	Precinct: 26
Date/Time CV Reported Thu, 09/30/2004 12:19 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Thu, 09/30/2004 12:19 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Rolando Carbonell	02708	928017	026 PCT
2. SGT Stephen Burns	01224	887150	026 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Rafael Iturralde	22881	928515	026 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Stephen Burns	Abuse: Sgt. Stephen Burns stopped and questioned § 87(2)(b)	A . Exonerated
B . POM Rolando Carbonell	Abuse: PO Rolando Carbonell threatened to arrest § 87(2)(b)	B . Unsubstantiated
C . SGT Stephen Burns	Discourtesy: Sgt. Stephen Burns spoke rudely to § 87(2)(b)	C . Unsubstantiated
D . SGT Stephen Burns	Abuse: Sgt. Stephen Burns threatened to arrest § 87(2)(b)	D . Unsubstantiated
E . SGT Stephen Burns	Force: Sgt. Stephen Burns used physical force against § 87(2)(b)	E . Unsubstantiated

Synopsis

On September 30, 2004, § 87(2)(b) contacted the CCRB by telephone, to report that on September 29, 2004, at approximately 10:45PM while exiting Morningside Park, he was stopped by three plainclothes officers, namely, PO Rolando Carbonell, Sgt. Stephen Burns, and PO Rafael Iturralde (Allegations A). The three officers exited their unmarked vehicle and called § 87(2)(b) over to them. PO Carbonell asked § 87(2)(b) for identification and told him that he was not supposed to be in the park after 10:00PM, because it was closed. When § 87(2)(b) refuted the assertion that the park was closed, PO Carbonell told him that he was trespassing and that he could be given a summons or be arrested for being there (Allegation B). When § 87(2)(b) alerted the officers that there were other people in the park of “European descent,” and asked why they were not being stopped, Sgt. Burns said to § 87(2)(b) “Well now you’re talking about race you stupid fuck, you “motherfucking asshole” (Allegation C). I’m going to throw you in jail if you say another word” (Allegation D). § 87(2)(b) was then issued a summons for § 87(2)(a) by PO Carbonell. As § 87(2)(b) began to walk out of the park, Sgt. Burns walked up behind him and began to jostle and push up against him with his chest, and to rub his handcuffs together; opening and closing them in what he deemed a threatening manner (Allegation E). With Sgt. Burns walking behind him, § 87(2)(b) eventually exited Morningside Park and proceeded on his route home.

§ 87(2)(g)

Therefore, it is recommended that allegation A be ***exonerated***.

§ 87(2)(g)

it is recommended that allegation B be ***unsubstantiated***.

§ 87(2)(g)

it is recommended that allegation C be ***unsubstantiated***.

§ 87(2)(g)

Thus, it is recommended that allegation D be ***unsubstantiated***.

§ 87(2)(g)

it is recommended that allegation E be ***unsubstantiated***.

Summary of Complaint

§ 87(2)(b) a § 87(2)(b)-old African American male, was interviewed at the CCRB on October 21, 2004. According to § 87(2)(b) on September 29, 2004 at approximately 10:45 PM, he was in the vicinity of 114th Street and Manhattan Avenue, in Morningside Park. § 87(2)(b) was walking alone, on his way home, after having a drink at a local bar. § 87(2)(b) entered the park at the entrance located on 110th Street and walked diagonally through the park towards an exit on 114th Street. § 87(2)(b) recalled that there were about six other people in the park at the time, including a Caucasian woman who was walking her dog.

As § 87(2)(b) was exiting the park at Manhattan Avenue and 114th Street, he saw an unmarked police car moving very rapidly through the park in his direction. § 87(2)(b) was in motion, already outside of the park when he saw the vehicle approaching. The car stopped about 50 or 60ft from the exit where § 87(2)(b) was, and three plainclothes police officers jumped out of the vehicle and called at him to stop. One of the officers yelled to him, "Hey you, come here!" § 87(2)(b) walked back into the park to the officers and asked the officers what crime he had committed. This officer, later identified as PO Rolando Carbonell of the 26th precinct, then told § 87(2)(b) that he was not supposed to be in the park after dark. § 87(2)(b) told PO Carbonell that that was incorrect because the park closed at 1AM. PO Carbonell responded, "well you're trespassing anyway, and we can either throw you in jail or give you a ticket." PO Carbonell asked § 87(2)(b) for identification, which he did not have. § 87(2)(b) then gave PO Carbonell his name, address and social security number. According to § 87(2)(b) another police car had arrived on the scene, coming from the same direction from which the unmarked vehicle came. There were two unidentified, uniformed police officers in the car. § 87(2)(b) stated that the two officers in the patrol car did not exit the vehicle at any time, thus, he had no contact with them. PO Carbonell took the information he obtained from § 87(2)(b) to the patrol car and presumably entered his information in the system. PO Carbonell returned and issued § 87(2)(b) a summons for § 87(2)(a) 160.50 through which he was later identified. § 87(2)(b) asked PO Carbonell whether he needed to go to court, or if he could send his lawyers. After asking this question, he heard the white officer, later identified as Sgt. Burns, who was standing behind him begin to snicker and chuckle, making comments indicating that he did not believe § 87(2)(b) had lawyers. The third, Hispanic officer that was present, and who witnessed this incident was identified as PO Rafael Iturralde.

§ 87(2)(b) added that he saw two white men, and a white woman walking through the park with their dogs. However, he and another black male in the park who was drinking a beer, were the only ones that were stopped by the police. § 87(2)(b) asked one of the officers why they were the only ones being stopped and the white officer, later identified as Sgt. Burns responded, "well we don't want to put ourselves in danger. Mind your business, because you're already in trouble." After receiving the summons from PO Carbonell, § 87(2)(b) stated, "All I ask here is equal application of the law. There are other people in the park who are of European origin, and you are just harassing me." Sgt. Burns then charged at § 87(2)(b) and stated "Well now you're taking about race you stupid fuck, you motherfucking asshole. I'm going to throw you in jail if you say another word." As § 87(2)(b) was walking out of the park, Sgt. Burns came from behind § 87(2)(b) and began to jostle and push up against him with his chest, and to rub his handcuffs together; opening and closing them in what he deemed a threatening manner. The other black male that was stopped was in the vicinity and witnessed the entire incident as it occurred.

§ 87(2)(b) left the park, immediately heading to his home, and filed a complaint. § 87(2)(b) went on to state "I'm really angry about this, I'm at the point of anger that I'm almost at the edge of violence at every second. This is not the first time this happened, this is the second time this has happened in two weeks. I don't want to be bothered by the police in the city for any reason, and this is the last time that I'm saying this! Because I'm really, really, really angry, to the point I'm ready to arm myself and put on a bullet proof vest and go out at night and see who's going to fuck with me. I'm furious." § 87(2)(b) stated that it is illegal for officers to stop black males in the park without cause and that it was illegal to give someone a summons and to arrest them for the same incident. He also stated, "If I ever see that guy again, I'm going to give him more than a piece of my mind, because I've really had enough of this bullshit." (See enclosure #) § 87(2)(b), § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Results of Investigation

§ 87(2)(g)

§ 87(2)(g)

Officer Statements:

PO Rolando Carbonell

PO Rolando Carbonell, a Hispanic male officer from the 26th precinct was interviewed at the CCRB on January 18, 2005. PO Carbonell recalled that on the date of incident, September 29, 2004, he worked a 15:30 by 00:05 tour. PO Carbonell was assigned to a plainclothes condition with Sgt. Stephen Burns and PO Rafael Iturralde in an unmarked blue Chevrolet, Impala, - car #680.

Memo Book Entry:

23:05 Male observed inside Morningside Park after park was closed. § 87(2)(b) § 87(2)(b) ,
Summons # § 87(2)(b)

On September 29, 2004 at approximately 11:05PM, PO Rolando Carbonell, PO Rafael Iturralde and Sgt. Stephen Burns were conducting a patrol inside of Morningside Park in an unmarked vehicle. The officers were looking for anyone who was trespassing in the park because the park had closed at 10:00PM. At approximately 11:05PM, § 87(2)(b) was observed inside the park, was detained and was asked for identification.

PO Carbonell stated that as he, PO Iturralde and Sgt. Burns were driving through the park, he did not see any other individuals in the park. According to PO Carbonell, who was seated in the front passenger seat, when they saw § 87(2)(b) they drove close to him, pulled him over, and the three of them exited the vehicle. PO Carbonell asked § 87(2)(b) for identification, and once it was received, he took it back to their unmarked vehicle and ran it through the computer to check for warrants. PO Carbonell stated that no other vehicles entered the park and no other officers or vehicles were at the scene. PO Carbonell only remembers that three individuals were stopped that night. PO Carbonell does not recall having a discussion with any of these individuals, however, he stated that his sergeant did have a “minor discussion” with one of these individuals. PO Carbonell stated that the individual did not want to leave the park, and that his sergeant was screaming at the individual. Accordingly, Sgt. Burns told the individual that if he did not leave the park, he would be arrested, however, PO Carbonell does not recall if this individual was § 87(2)(b). PO Carbonell stated that he was in the unmarked vehicle for the majority of the time. PO Carbonell stated that he usually remains in the vehicle during stops, because he is the one who checks a stopped individual’s identification for warrants. Therefore, according to PO Carbonell, if an incident did occur between § 87(2)(b) and one of the officers, he would not have and did not witness it. PO Carbonell also stated that he has no recollection of telling § 87(2)(b) that he could be arrested for being in the park, as he had no contact with him. PO Carbonell stated that he definitely did not witness any physical contact between § 87(2)(b) and either PO Iturralde or Sgt. Burns, because if he did, he would have immediately exited the vehicle to assist them.

PO Rafael Iturralde

Because § 87(2)(b) did not mention any interaction with PO Iturralde, and solely referred to PO Carbonell and a “white male officer,” PO Iturralde was listed and interviewed as a witness officer.

PO Rafael Iturralde was interviewed at the CCRB on January 27, 2005 at 11:17AM. PO Iturralde has been working at the 26th Precinct for close to three years and stated that he works in Morningside park every day. On the date of incident, September 29, 2004, PO Rafael Iturralde worked a tour of 15:30 by 00:05. PO Iturralde was assigned to precinct conditions, and he was working with PO Rolando Carbonell and Sgt. Stephen Burns. The three officers were on patrol inside the park in an unmarked car and were dressed in plain clothes. With no memo book entries, PO Iturralde based his statements during the interview solely on his recollection of the incident.

During his shift, PO Iturralde, PO Carbonell and Sgt. Burns patrolled Morningside Park in Manhattan searching for anything out of the ordinary, i.e., criminal activity. While driving through the park, PO Iturralde, PO Carbonell and Sgt. Burns noted various individuals that were inside the park past its closing time, which is 10 PM. PO Iturralde recalls that there may have been other people in the other areas of the park, but only § 87(2)(b) and another individual in a nearby area were approached. PO Iturralde stated that the only reason § 87(2)(b) was stopped and issued a summons was that he was violating the park rules by being there after 10:00PM.

According to PO Iturralde, § 87(2)(b) was seen walking through Morningside Park near 114th Street between the stairs and the exit. The officers pulled their car up near § 87(2)(b) and PO Carbonell called § 87(2)(b) over to the car. PO Carbonell exited the vehicle, while PO Iturralde and Sgt. Burns remained inside. § 87(2)(b) was asked what he was doing in the park, and was asked to present identification. After § 87(2)(b) provided PO Carbonell with identification, PO Iturralde and Sgt. Burns stepped outside of the vehicle. Another individual that was inside the park was also called over by the officers. PO Iturralde stated that he did not speak to § 87(2)(b) and only recalled PO Carbonell and Sgt. Burns speaking to him. PO Carbonell took § 87(2)(b)'s identification back into the vehicle in order to run a check for warrants and to issue him a summons. PO Iturralde stated that he did not recall exactly what § 87(2)(b) said at any point, however, he did remember § 87(2)(b) being upset and hesitant to leave the park. Upon his hesitance, § 87(2)(b) was advised that he would be arrested if he did not leave the park. PO Iturralde stated that he did not remember any cursing or physical contact occurring between any of the officers and § 87(2)(b). § 87(2)(b) left the park and was not escorted out by the officers.

Sgt. Stephen Burns

Sgt. Stephen Burns was interviewed at the CCRB on January 27, 2005. Sgt. Burns recalled that on September 29, 2004, he worked a tour of 15:05 by 00:02; however, he did not have any memo book entries concerning this incident.

Sgt. Burns has been working at the 26th Precinct for nine years and is very familiar with the confines of the precinct, including Morningside Park. On the evening of September 29, 2004 at approximately 10:45PM, Sgt. Burns was dressed in plainclothes, and was working as a conditions sergeant with PO Rolando Carbonell and PO Rafael Iturralde, in a dark colored unmarked vehicle, which was either a Chevy Caprice or a Ford, Crown Victoria. When on patrol, Sgt. Burns stated that he goes through Morningside Park about 4-6 times a night, because there is a high volume of drug use in the park, as well as a high incidence of robberies. Sgt. Burns stated that anyone found in the park after 10PM would be confronted and issued a summons for being in violation of the park's closing hour. Every evening after the park is closed, Sgt. Burns and his partners (who happened to be PO Carbonell and PO Iturralde this evening) would enter the park to see if anyone was walking around or loitering in the park. If anyone is seen, he or she is stopped and issued a summons.

According to Sgt. Burns, as he PO Carbonell and PO Iturralde were driving in their unmarked vehicle, they saw two black males walking in the park. § 87(2)(b) was observed walking from west to east inside the park. The officer's vehicle stopped in these individuals' path, about 100 feet away from them, between the baseball field and the pond in the park. There were no other vehicles in the park, and there was no one else seen in the park at the time. Sgt. Burns, PO Carbonell and PO Iturralde exited the vehicle and approached § 87(2)(b). From the moment § 87(2)(b) was stopped, he started "getting excited" and raising his voice. § 87(2)(b) continually protested being stopped, stated that this had happened to him before, (being stopped and issued a summons), and that this was very upsetting to him. PO Carbonell asked § 87(2)(b) for his ID and took it into the unmarked vehicle, where he ran it for warrants and wrote him a summons. Sgt. Burns and PO Iturralde remained outside of the vehicle, where they listened to § 87(2)(b) as he continued yelling and protesting the stop. Sgt. Burns stated that he did not recall the conversation that went on between PO Carbonell and § 87(2)(b) he did not recall whether a conversation took place between § 87(2)(b) and PO Iturralde. Sgt. Burns also stated that he did not have a conversation with § 87(2)(b) during the incident, because he was just yelling and screaming. According to Sgt. Burns, § 87(2)(b) had been yelling and screaming for about eight to ten minutes,

but was not bothering anybody. As § 87(2)(b) was standing amongst the officers, he pointed to another woman who had entered the park at the opposite end. § 87(2)(b) asked the officers why this woman was not being stopped. Sgt. Burns responded to § 87(2)(b) that he was dealing with him at that moment, and because he § 87(2)(b) was extremely excitable, was not going to leave the present situation to start another situation.

After PO Carbonell issued § 87(2)(b) the summons, he was told to leave the park. § 87(2)(b) refused to leave, and continued yelling and screaming. The other individual, later identified as § 87(2)(b) § 87(2)(b) had been stopped at this point as well. After § 87(2)(b) § 87(2)(b) was issued a summons, they § 87(2)(b) and § 87(2)(b) were both told to leave the park. § 87(2)(b) § 87(2)(b) complied and exited the park; however, § 87(2)(b) remained in the park, and continued to protest. Sgt. Burns then told § 87(2)(b) “You have to go, or we’re going to lock you up.” Relentlessly, § 87(2)(b) continued to protest and did not leave the park. Sgt. Burns proceeded to take his handcuffs out, show them to § 87(2)(b) and tell him, “I’m going to have to arrest you if you do not leave, if you stay in the park.” At this point, § 87(2)(b) began to walk out of the park. Sgt. Burns stated that § 87(2)(b) was followed out of the park. Sgt. Burns also added that as § 87(2)(b) was walking out of the park, he stopped, turned around and continued to yell and curse at them twice, before fully exiting the park.

Sgt. Burns stated that he does not usually use profanity with anyone and he does not get excited, therefore, he does not recall using any curse words towards § 87(2)(b) § 87(2)(b). Sgt. Burns stated that he did not recall calling § 87(2)(b) a “stupid motherfucker,” or a “motherfucking asshole.” Sgt. Burns also stated that he did not come into physical contact with § 87(2)(b) at all, and that if he did, § 87(2)(b) would have been arrested.

Status of Summons Issued:

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Complainant Criminal Conviction History:

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Officer Substantiation History:

As of the date of this report, PO Rolando Carbonell has one substantiated allegation in his CCRB history. PO Carbonell received a command discipline for the substantiation of a Discourtesy-Word allegation in CCRB case # 200403560 (See attachment #).

As of the date of this report, PO Rafael Iturralde has one substantiated allegation in his CCRB history. PO Iturralde received a command discipline for the substantiation of a Discourtesy – Word allegation in CCRB case # 200403560 (see attachment #).

As of the date of this report, Sgt. Stephen Burns has no substantiated allegations in his CCRB history (see attachment #).

Conclusions and Recommendations

Undisputed Facts:

What is undisputed is that on September 29, 2004, PO Rolando Carbonell, PO Rafael Iturralde and Sgt. Stephen Burns stopped § 87(2)(b) inside Morningside Park in Manhattan. § 87(2)(b) and another individual by the name of § 87(2)(b) § 87(2)(b) were stopped and questioned because they were in the

park after it had closed. § 87(2)(b) was issued a summons § 87(2)(a) 160.50 by PO Carbonell, and was told by Sgt. Burns that if he did not leave the park, he would be arrested.

Issues in Dispute:

§ 87(2)(b), § 87(2)(g)

Credibility Assessment:

§ 87(2)(b), § 87(2)(g)

On the evening of October 17, 2005, § 87(2)(b) had another interaction with police officers where he was stopped and questioned, “for no reason.” § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b) made mention of an additional “black and white” police vehicle that arrived at the park while he was stopped, however, all three officers indicated that no other vehicles or officers were in the park at that time.

§ 87(2)(b), § 87(2)(g)

Allegation A: Sgt. Stephen Burns stopped and questioned § 87(2)(b) in violation of Patrol Guide Procedure 212-11.

§ 87(2)(b) alleges that at approximately 10:45PM, upon exiting Morningside Park, he was stopped and questioned without cause by Sgt. Burns. § 87(2)(g)

Therefore, allegation A is being submitted with the recommendation that it be *exonerated*.

Allegation B: PO Rolando Carbonell threatened to arrest § 87(2)(b) in violation of Patrol Guide Procedure 208-01.

According to § 87(2)(b) after he was stopped, PO Carbonell told him that he was not supposed to be in the park after 10:00PM. § 87(2)(b) responded that this was incorrect because the park closed at 10:00PM. PO Carbonell then told § 87(2)(b) “well you’re trespassing anyway, and we can either throw you in jail or give you a ticket.” § 87(2)(g)

According to Section 1-03(a) of the New York City Department of Parks and Recreation’s rules and regulations, “Persons may enter and use the parks from 6:00 a.m. to 1:00 a.m. unless other open hours are posted at any park.” In addition, Section 1-03 (c)(2) stipulates that, “No person shall fail to comply with or obey any instruction, [...] written or printed [...] on any park sign,” (See enclosure #). § 87(2)(b), § 87(2)(g)

Further, it should be noted that Section 1-03(c)(1) states that, “No person shall fail, neglect or refuse to comply with the lawful direction or command of any police officer [...]” § 87(2)(g)

Therefore, allegation B is being submitted with the recommendation that it be *unsubstantiated*.

Allegation C: Sgt. Stephen Burns spoke rudely to § 87(2)(b) in violation of Patrol Guide Procedure 203-09.

During the time in which § 87(2)(b) was stopped inside Morningside Park, he noticed three other white individuals inside the park and pointed them out to the officers. According to § 87(2)(b) when he mentioned that there were other people in the park of European decent, and that he was just being harassed, Sgt. Burns responded, “Well now you’re talking about race you stupid fuck, you motherfucking asshole.” § 87(2)(g)

Therefore, allegation C is being submitted with the recommendation that it be *unsubstantiated*.

Allegation D: Sgt. Stephen Burns threatened to arrest § 87(2)(b) in violation of Patrol Guide Procedure 208-01.

When § 87(2)(b) attempted to make Sgt. Burns aware of the fact that there were white people in the park, Sgt. Burns responded, “Well now you’re talking about race you stupid fuck, you motherfucking asshole (see allegation C). I’m going to throw you in jail if you say another word.” § 87(2)(g)

Sgt. Burns stated that after § 87(2)(b) pointed out the other individual(s) in the park to him, he told him that he was not going to leave the current situation that he was in with him § 87(2)(b) to start a new one. § 87(2)(g)

Therefore, allegation D is being submitted with the recommendation that it be *unsubstantiated*.

Allegation E: Sgt. Stephen Burns used physical force against § 87(2)(b) in violation of Patrol Guide Procedure 203-11.

According to § 87(2)(b) as he was walking out of Morningside Park, Sgt. Burns walked up behind him and began to jostle and push up against him with his chest, opening and closing his handcuffs in a threatening manner. PO Iturralde stated that he did not recall any physical contact between § 87(2)(b) and Sgt. Burns. PO Carbonell did not witness any physical contact, and stated that such would have prompted him to exit his vehicle and assist Sgt. Burns. Sgt. Burns also asserted that he had no physical contact with § 87(2)(b) and specifically denied jostling or pushing up against § 87(2)(b) with any part of his body. § 87(2)(g)

§ 87(2)(g)
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§ 87(2)(g)

§ 87(2)(b) Thus, allegation E is being submitted with the recommendation that it be ***unsubstantiated***.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: